TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
AUGUST 25, 2025
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Aaron Butner, Cheryll Woods-Flowers, Joan Spier.
Staff: Chris Swalhah, James Ward, Eddie Bernard, Lynnette Lynes

Mr. Wood called the meeting to order at 6 pm.

A. Approval of Agenda

Mr. Butner moved for approval of the agenda. Ms. Stevens seconded the motion. All in favor.

Ms. Stevens moved to continue the following agenda items:

- ***Case V-22-25,*** ***3691 Locklear Lane, TMS# 614-01-00-133,*** *Request for relief from §156.705 to encroach within the required Tree Protection Zone of a 59'' Live Oak Tree for the construction of a new home.*
- ***Case V-24-25,*** ***930 Overview Court, TMS# 562-06-00-029,*** *Request for relief from §156.705 to encroach within the required Tree Protection Zones of a 35'' Red Oak Tree and a 32'' Live Oak Tree for the construction of an accessory structure.*
- ***Case V-25-25,*** ***517 Pelzer Drive, TMS# 517-07-00-013,*** *Request for relief from §156.705 to encroach within the required Tree Protection Zones of a 63'' Live Oak Tree, a 32'' Live Oak Tree, and a 29'' Laurel Oak Tree for the construction of an addition to an existing residence.*

Mr. Butner seconded the motion. All in favor.

B. Approval of Minutes

Ms. Ms. Woods-Flowers moved for approval of the minutes. Ms. Spier seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments or correspondence, Mr. Wood continued with the agenda.

E. Explanation of Procedures
F. Administration of Oath

▶ Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

G. Business

1. **Case V-22-25, 3691 Locklear Lane, TMS# 614-01-00-133,** Request for relief from §156.705 to encroach within the required Tree Protection Zone of a 59'' Live Oak Tree for the construction of a new home.
2. **Case V-24-25, 930 Overview Court, TMS# 562-06-00-029,** Request for relief from §156.705 to encroach within the required Tree Protection Zones of a 35'' Red Oak Tree and a 32'' Live Oak Tree for the construction of an accessory structure. Related Correspondence
3. **Case V-25-25, 517 Pelzer Drive, TMS# 517-07-00-013,** Request for relief from §156.705 to encroach within the required Tree Protection Zones of a 63'' Live Oak Tree, a 32'' Live Oak Tree, and a 29'' Laurel Oak Tree for the construction of an addition to an existing residence.

These items were continued.

4. **Case V-28-25, 412 Palm Street, TMS# 517-03-00-036,** Request for relief from §156.705 to encroach within the required Tree Protection Zones of a 28'' Live Oak Tree, and a 19'' Live Oak Tree for the construction of an addition to an existing residence.

This item was withdrawn by staff due to a conflict with the recorded covenants and restrictions.

5. **Case V-29-25, 1153 N Shadow Drive, TMS# 535-16-00-072,** Request for relief from §156.702 to allow the removal of a 34'' Live Oak Tree.

▶ Mr. Swalhah reviewed staff comments with the Board.

▶ Mr. John Eysen, owner, and Mr. Gerald Benoit, arborist, reviewed the request with the Board.

▶ *Mr. Butner moved for approval to submit additional photos. Mr. Branch seconded the motion. Motion passed on a 4 to 3 vote with Mr. Butner, Ms. Ms.*

Woods-Flowers, Mr. Branch, and Ms. Stevens in favor; Mr. Barrow, Ms. Spier, and Mr. Wood opposed.

- Ms. Michelle Stress, 545 Veranda View, expressed concern that the information provided by an arborist could be biased or there could be collusion because the arborist is paid by the applicant. She suggested that an independent arborist should review the condition of the tree prior to allowing removal.

- Mr. Frank Stress, 545 Veranda View, stated that he is a contractor and suggested that construction can be accomplished without encroachment into a tree protection zone.

There being no further comments, Mr. Wood moved to Board questions.

- There being no further comments, Mr. Wood closed public comment.

- *Ms. Woods-Flowers moved for a continuance to have the Town arborist assess the tree. Mr. Barrow seconded the motion.*

- *Mr. Barrow moved to amend the motion to include a full risk analysis of the oak tree and for the applicant to provide an engineering report on the structural integrity of the home and the causation of the crack in the foundation evidenced in photo #10. Ms. Spier seconded the motion. Amendment failed on a 3 to 4 vote with Mr. Barrow, Ms. Spier and Mr. Wood in favor; Mr. Butner, Ms. Woods-Flowers, Mr. Branch, and Ms. Stevens opposed.*

- *Ms. Stevens moved to amend the motion to also require a structural engineering assessment of the crack in the foundation. Mr. Branch seconded the motion. Motion passed on a 6 to 1 vote with Ms. Woods-Flowers, Mr. Barrow, Mr. Branch, Ms. Spier, Ms. Stevens, and Mr. Wood in favor; Mr. Butner opposed.*

- *Mr. Wood called for a vote on the motion as amended. Motion passed on a 6 to 1 vote with Ms. Woods-Flowers, Mr. Barrow, Mr. Branch, Ms. Spier, Ms. Stevens, and Mr. Wood in favor; Mr. Butner opposed.*

6. **Case V-30-25, 933 McCants Drive, TMS# 532-11-00-173,** Request for relief from §156.702 to allow the removal of a 25'' Cedar Tree.

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Ben Denowski, owner, reviewed the request with the Board.

- Ms. Michelle Stress, 545 Veranda View, suggested that there is no hardship for removal of the tree.

There being no further comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Branch moved for denial based on the findings that the applicant has failed to meet the criteria required to grant a variance. Mr. Butner seconded the motion. All in favor.*

7. **Case V-31-25, Rifle Range Park, TMS# 578-00-00-066,** Request for relief from §156.038-1 to allow a proposed recreation building to exceed the maximum height requirement by 3-feet, 6-inches. The ordinance limits the height of buildings on this parcel to 35-feet.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Elissa Morrison, architect, and Mr. Steve Gergick, Town staff reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood closed public comment.

- *Mr. Branch moved for approval based on the findings that they met all of the criteria to grant a variance. Ms. Stevens seconded the motion. Motion passed on a 6 to 1 vote with Ms. Woods-Flowers, Mr. Barrow, Mr. Branch, Ms. Spier, Ms. Stevens, and Mr. Wood in favor; Mr. Butner opposed.*

There being no further business, the meeting adjourned at 7:41 pm.

Submitted by,
L. Lynes
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